

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



July 26, 2018

Honorable Cynthia Rayvis
Judge of the Superior Court
County of Los Angeles
12720 Norwalk Boulevard
Norwalk, CA 90650

Re: Ybarra, Alex
CDC No.: F18295
Case No.: VA083280
Date of Sentence: 02/24/2006

Dear Honorable Cynthia Rayvis:

The purpose of this letter is to provide the court with authority to resentence Alex Ybarra pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Ybarra was sentenced in 2006, and was convicted of section 245, subdivision (A)(2), ASSAULT W/FIREARM ON PERSON. The trial court sentenced inmate Ybarra on 02/24/2006. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Ybarra's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Ybarra's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced in accordance with the cited authority.

Sincerely,

A handwritten signature in black ink, appearing to read "SCOTT KERNAN", is written over a horizontal line.

SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Honorable Daniel J. Buckley, Los Angeles County Presiding Judge
Los Angeles District Attorney
Private Attorney

F18295

RISP
3-7-06
WPCD

F18295 CR-290.1

**ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE
SINGLE, CONCURRENT, OR FULL-TERM CONSECUTIVE COUNT FORM**
[Not to be used for multiple count convictions or for 1/3 consecutive sentences]

SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES - SOUTHEAST DISTRICT		
PEOPLE OF THE STATE OF CALIFORNIA vs DEFENDANT: ALEX YBARRA AKA: ROBERT RODRIQUEZ CH#: A11780285 BOOKING #: 7909654	DOB: 02-11-82 ☐ NOT PRESENT	CASE NUMBER 0083280 ENTERED INTO OBIS
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT		☐ AMENDED ABSTRACT
DATE OF HEARING 02-24-06	DEPT. NO. SE T	JUDGE C. RAYVIS
CLERK G. M. BLACK	REPORTER W. GRAY	PROBATION NO. OR PROBATION OFFICER X- 1760498
COUNSEL FOR PEOPLE J. MOSES		COUNSEL FOR DEFENDANT J. McDONALD ☐ APPTD.

1. Defendant was convicted of the commission of the following felony:

CNT.	CODE	SECTION NUMBER	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY	TERM (L./M./Y)	TIME IMPOSED
2	PC	245(A)(2)	ASSAULT W/ FIREARM ON PERSON	2003	01-20-06	X	U	4 0

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

CNT.	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL
2	12022.7(A) P. C.	3	12022.5(A)(1)	3	186.22(B)(1)	5			11 0

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL

4. ☐ Defendant was sentenced pursuant to PC 667 (b)-(i) or PC 1170.12 (two-strikes).

5. FINANCIAL OBLIGATIONS (including any applicable penalty assessments):

Restitution Fine(s): **\$200** per PC 1202.4(b) forthwith per PC 2085.5; **\$200** per PC 1202.45 suspended unless parole is revoked.

Restitution per PC 1202.4(f): ☐ \$_____ / ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
(*List victim name(s) if known and amount breakdown in item 7 below.)

Fine(s): \$_____ per PC 1202.5. \$_____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ CC ☐ CS

Lab Fee: \$_____ per HS 11372.5(a) for counts _____. ☐ Drug Program Fee of \$150 per HS 11372.7(a).

6. TESTING: a. ☐ AIDS pursuant to PC 1202.1 b. ☒ DNA pursuant to PC 296 c. ☐ other (specify):

7. Other orders (specify): **PEOPLE'S MOTION TO DISMISS REMAINING COUNTS AND ALLEGATIONS IS GRANTED.
MEDICAL ORDER SIGNED BY THE COURT, FAXED TO THE SHERIFF AND FILED.**

8. TOTAL TIME IMPOSED EXCLUDING COUNTY JAIL TERM: 15 0

9. ☐ This sentence is to run concurrent with (specify):

10. Execution of sentence imposed

- | | |
|---|---|
| a. ☒ at initial sentencing hearing. | d. ☐ at resentencing per recall of commitment. (PC 1170(d).) |
| b. ☐ at resentencing per decision on appeal. | e. ☐ other (specify): |
| c. ☐ after revocation of probation. | |

11. DATE SENTENCE PROOUNCED 02-24-06	CREDIT FOR TIME SPENT IN CUSTODY	TOTAL DAYS: 677 INCLUDING:	ACTUAL LOCAL TIME 589	LOCAL CONDUCT CREDITS 88	☐ 4019 ☐ 2933.1	TIME SERVED IN STATE INSTITUTION: DMH CDC CRC
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12. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
To be delivered to ☒ the reception center designated by the director of the California Department of Corrections.
☐ other (specify):

CLERK OF THE COURT: I hereby certify the foregoing to be a correct and true copy of the judgment made in this action.

DEPUTY'S SIGNATURE T. BINGCANG <i>T. Bingcang</i>	03-13-06
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This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213.5 for determining sentence. Attachments may be used but must be referred to in this document.